

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9kOWckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

GARY F MARQUEZ,

Respondent

) Case Number: FCS-13-348634

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Respondent, Gary Marquez Jr., (Father) and Other Parent, Barbara Martinez (Mother). They share one minor child named Kai Marquez born 11/10/12.
- 2) On April 8, 2026, Father filed a Request for Order seeking modification of the existing visitation (i.e., parenting time) orders. In particular, Father requests:
 - a. A week on/week off parenting plan; and
 - b. Exchanges to occur on Fridays at school
- 3) On May 11, 2026, the matter was heard on the Court's "Readiness" calendar. The Court referred the parties to FCS Mediation to occur on June 16, 2026 and set a return hearing for June 23, 2026.
- 4) On May 18, 2026, Mother filed a Responsive Declaration to Father's RFO, which has been read and considered by this Court.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child(ren) is the United States.

3 2) Father's parenting time with the minor child shall be on the 1st, 3rd, and 5th weekends of each
4 month from Friday afterschool (or 3:00 p.m., in the Summer) until Sunday at 6:00 p.m. Father
5 shall do the pickup and drop offs.

6 3) The parents shall work out a Holiday schedule on their own. Any agreements reached shall be in
7 writing (email, text, or letter). If they are unable to work out a Holiday schedule on their own,
8 either parent may file a motion with this Court seeking such orders.

9 4) Father is ordered to disclose the full name and contact information for any person with whom he
10 currently resides.

11 5) Minor child shall only be transported by a person who has a valid California Driver License and
12 insurance.

13 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANTE SMITH,

Petitioner

VS.

CIARRA WALKER-SMITH,

Respondent

) Case Number: FPT-23-378122

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

HEARING RE: CHILD CUSTODY, VISITATION/PARENTING TIME (SET FROM TRIAL SETTING
CALENDAR)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Dante Smith (Father) and Respondent Ciarra Walker-Smith (Mother). They share one minor child: Amun Smith (DOB: 10/21/22).
- 2) On April 10, 2026, Mother filed an Ex Parte application seeking emergency orders. In particular, Mother is seeking a modification of the existing child custody and visitation orders. Mother alleges that Father moved out of California with the minor child and that this has resulted in her parenting time being disrupted. The Court DENIED the temporary, emergency request and set the matter for regular hearing.
- 3) On May 18, 2026, this Court held a "Readiness" hearing and set the matter for FCS Mediation to occur on May 19, 2026 and set the matter for return hearing on June 23, 2026.
- 4) On May 19, 2026, the parties attended FCS Mediation and did not reach any agreements.

1 5) On June 16, 2026, Mother filed a Supplemental Declaration, which has been read and considered
2 by this Court.

3 6) On June 23, 2026, the parties attended another FCS Mediation session and did not reach any
4 agreements.

5 7) As of June 18, 2026, Father has not filed a Responsive Declaration to Mother's pending motion.

6 **B. Findings and Order**

7 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
8 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
9 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
10 child(ren) is the United States.

11 2) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRYAN JAMES BEELEY,

Petitioner

VS.

KATHERINE J. CARPENTER,

Respondent

) Case Number: FPT-25-378786

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF REQUEST FOR ORDER RE CHILD CUSTODY-VISITATION-
SUPPORT CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Bryan James Beeley (Father) and Respondent Katherine J. Carpenter (Mother). They share two minor children: River Melody Beeley Carpenter (DOB: 08/21/17) and Jade Forest Carpenter Beeley (DOB: 12/30/19).
- 2) On December 4, 2025, Father filed a Request for Order seeking orders related to child custody, visitation, and child support. The matter was set for hearing on January 12, 2026. Father requests:
 - a. Joint legal and Joint physical custody of the minor children;
 - b. A 2/2/5 parenting time schedule, including additional parenting orders, a holiday schedule; and
 - c. Guideline child support, including mandatory add-on expenses.
- 3) On December 9, 2025, Father filed a Notice of Errata to correct a minor typographical error in his original declaration.
- 4) On December 29, 2025, Mother filed a Responsive Declaration wherein she requests:

- a. Sole legal and sole physical custody;
 - b. Father's parenting time on the 1st and 3rd weekends of each month from Thursday after school through Sunday at 6:00 p.m.;
 - c. Father's parenting time on the 2nd and 4th weeks of each month to from Wednesday after school to Friday return to school;
 - d. Holiday schedule per Mother's FL-341(C).; and
 - e. She consents to a guideline child support order.
- 5) On January 12, 2026, the Court referred the parties to FCS Mediation on February 25, 2026, and set a return hearing on March 10, 2026.
 - 6) On March 10, 2026, the matter was heard; however, around the same time that the Court issued its tentative ruling for this hearing the parties reached an agreement. The Court did not adopt the tentative ruling at the request of the parties to permit them the opportunity to submit a stipulation. At the hearing, the parties indicated they wanted a further review hearing on custody/visitation issues; therefore, the Court set a review hearing for June 23, 2026.
 - 7) On June 15, 2026, Mother filed a "Respondent's Supplemental Declaration in Opposition to Petitioner's Request for Order re: Custody, Visitation and Child Support, which has been read and considered by the Court.
 - 8) On June 15, 2026, Father filed a "Supplemental Declaration of Bryan Beeley," which has been read and considered by the Court.
 - 9) The parties did not submit a Stipulation and Order as they indicated they intended to do at hearing on March 10, 2026.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The parties shall share joint legal and joint physical custody of the minor children.
- 3) The parenting time shall be on a 2/2/5 schedule to commence on June 23, 2026, as follows:

- a. Mother shall have care and custody of the children every Monday and Tuesday, overnight.
 - b. Father shall have care and custody of the children every Wednesday and Thursday, overnight.
 - c. They shall alternate weekends from Friday after school through Monday morning drop off.
 - d. The exchanges shall occur at school/camp. If no school/camp is in session, the exchange shall occur at 9:00 a.m. The receiving parent shall pick up the children from the other parent's home.
- 4) Either parent may travel with the children outside of California, but within the United States, as long as they give the other parent 30- day notice in advance and a complete itinerary 15 days in advance of the proposed travel.
- 5) For Mother's Day and Father's Day, the children shall be with the celebrated parent from 9:00 a.m. -7:00 p.m.
- 6) The Court DENIES the request for the Court to implement a holiday schedule. The parties are encouraged to work together to develop a schedule that is in the children's best interest.
- 7) The Court finds good cause to adopt Father's proposed child support calculations labeled Attachment E and Attachment G of Father's June 15, 2026 Supplemental Declaration.
- 8) As such, effective December 4, 2025 (i.e., the filing date of Father's motion), Father owes Mother \$1,254 per month in guideline monthly child support in accordance with the XSpouse labeled Attachment E (which is attached hereto and incorporated herein). The parties shall meet and confer regarding any child support arrears owed during this period.
- 9) Commencing June 23, 2026, Father owes Mother \$545 per month in guideline monthly child support in accordance with the XSpouse labeled Attachment G (which is attached hereto and incorporated herein). Payments are due by the 1st of every month.
- 10) The parties shall share equally the following add-ons dated back to December 4, 2025: childcare costs related to employment or to reasonably necessary education or training for employment skills, reasonable uninsured healthcare costs and the reasonable costs associated with mutually agreed upon extracurricular activities (neither party shall unreasonably withhold consent for a

child to participate in an activity). The procedure to make or pay a reimbursement claim for these child support add-ons shall be as set forth in Judicial Council Form FL-192.

11) Any prior orders, not in conflict with the orders made herein, shall remain in full force and effect.

12) Counsel for Father shall prepare the Findings and Order After Hearing, which shall include as attachments the Xspouse reports referenced herein and forms FL-342 and FL-192.

13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

2026 Xspouse 2026-1-CA Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow	
Number of children	0	2	2026		Guideline	Proposed
Percent time with NCP	40.00%	0.00%			Combined net spendable	22611 22611
Filing status	SINGLE HH/MLA		GUIDELINE		Percent change	0% 0%
Number of exemptions	1	3	Nets (adjusted)		Father	
Wages and salary	18750	15000	Father	12280	Payment cost/benefit	-1254 -1254
Self employed income	0	0	Mother	10331	Net spendable income	11026 11026
Other taxable income	28	0	Total	22611	Change from guideline	0 0
TANF CS received	0	0	Support		% of combined spendable	49% 49%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0% 0%
New spouse income	0	0	Guideln CS	1254	Total taxes	6264 6264
Employee 401-k contribution	0	0	S.Clara SS	0	Dep. exemption value	0 0
Adjustments to income	0	0	Total	1254	# withholding allowances	0 0
SS paid prev marriage	0	0	-		Net wage paycheck	11771 11771
CS paid prev marriage	0	0	Settings changed		Mother	
Health insurance	234	616	Proposed		Payment cost/benefit	1254 1254
Other medical expenses	0	0	Tactic 9		Net spendable income	11585 11585
Property tax expenses	0	0	CS	1254	Change from guideline	0 0
Ded interest expense	0	0	SS	0	% of combined spendable	51% 51%
Contribution deduction	0	0	Total	1254	% of saving over guideline	0% 0%
Misc tax deductions	0	0	Saving	0	Total taxes	4053 4053
Qualified business income deduction	0	0	Releases	0	Dep. exemption value	0 0
Required union dues	0	0			# withholding allowances	0 0
Mandatory retirement	0	0			Net wage paycheck	10211 10211
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	0				

Father pays Guideline CS, Proposed CS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		40 - 60	0	0	0 Father	1,254 Father	1,254 Father
river	0000-00-00	40 - 60	0	0	0 Father	446 Father	446 Father
jade	0000-00-00	40 - 60	0	0	0 Father	808 Father	808 Father

2026

Xspouse 2026-1-CA

Monthly Figures

Fixed Shares	Father	Mother	Monthly Figures		Cash Flow		
Number of children	1	1	2026			Guideline	Proposed
Percent time with NCP	49.00%	49.00%			Combined net spendable	22844	22948
Filing status	HH/MLA	HH/MLA	GUIDELINE		Percent change	0%	0%
Number of exemptions	2	2	Nets (adjusted)		Father		
Wages and salary	18750	15000	Father	12738	Payment cost/benefit	-545	-593
Self employed income	0	0	Mother	10107	Net spendable income	12193	12145
Other taxable income	0	0	Total	22845	Change from guideline	0	-48
TANF CS received	0	0	Support		% of combined spendable	53%	53%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	-46%
New spouse income	0	0	Guideln CS	545	Total taxes	5775	5895
Employee 401-k contribution	0	0	S.Clara SS	-0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	545	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	12500	12500
CS paid prev marriage	0	0	Settings changed		Mother		
Health insurance	237	616	Proposed		Payment cost/benefit	545	697
Other medical expenses	0	0	Tactic 9		Net spendable income	10651	10804
Property tax expenses	0	0	CS	473	Change from guideline	0	152
Ded interest expense	0	0	SS	0	% of combined spendable	47%	47%
Contribution deduction	0	0	Total	473	% of saving over guideline	0%	146%
Misc tax deductions	0	0	Saving	104	Total taxes	4277	4053
Qualified business income deduction	0	0	Releases	-1	Dep. exemption value	0	0
Required union dues	0	0			# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	10211	10211
Hardship deduction	0	0					
Other GDL deductions	0	0					
Child care expenses	0	0					

Father pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		50 - 50	0	0	0 Father	545 Father	545 Father
River	0000-00-00	51 - 49	0	0	0 Father	148 Father	148 Father
Jade	0000-00-00	49 - 51	0	0	0 Father	397 Father	397 Father

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOHNNY GUOWEI ZHOU,

Petitioner

VS.

YANLI GUAN,

Respondent

) Case Number: FDI-14-782400

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Johnny Zhou (Father) and Respondent Yanli Guan (Mother). They share two minor children: Jayden Zhou, age 17 (DOB: 01/11/09) and Jayley Zhou, age 5 (DOB: 03/15/21).
- 2) On March 17, 2026, Father filed a Request for Order seeking to modify the existing visitation orders. Father is asking this Court to increase his current parenting time. In particular, Father is requesting parenting time with the Jayley only, as Jayden is about to emancipate. As to Jayley, Father is requesting parenting time with her:
 - a. Every Sunday from 4 p.m. – 9:00 p.m.
 - b. Every other weekend from Sunday at 4:00 p.m. – Monday morning for minor child to be picked up by the bus at his home.
- 3) On April 24, 2026, Mother filed a Responsive Declaration, which has been read and considered by the Court. Mother is asking the Court to deny Father's request for an expansion of time.

1 4) On May 11, 2026, the parties appeared at the Court's "Readiness" hearing and the Court referred
2 the parties to FCS Mediation to occur on June 11, 2026 and set a return hearing for June 23, 2026.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child(ren) is the United States.

8 2) Father's request to modify the current parenting plan as to Jayley is GRANTED.

9 3) Father's parenting time with the minor child, Jayley Zhou (DOB: 03/15/21) shall be:

10 a. Every Sunday from 4 p.m. – 9:00 p.m., and

11 b. Every other weekend from Sunday at 4:00 p.m. – Monday morning for minor child to be
12 picked up by the bus at his home.

13 4) As to the minor child Jayden, the Court will neither modify nor make any changes to the Father's
14 parenting time with him.

15 5) All prior orders, not in conflict with the orders herein, remain in full force and effect.

16 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DEXANDRO MONTALVO,

Petitioner

VS.

LEE LUNDRIGAN,

Respondent

) Case Number: FDI-19-792192

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

On for hearing is Petitioner Dexandro Montalvo's Order to Show Cause and Affidavit for Contempt file dated 6/3/25 alleging that Respondent Lee Lundrigan is noncompliant with spousal support orders.

Petitioner asserts Respondent owes Petitioner \$65,769 in unpaid spousal support (excluding statutory interest).

At the prior 5/14/26 hearing, the Court ordered Respondent Lee Lundrigan to file an Income and Expense Declaration if Respondent seeks appointment of contempt counsel to represent him in this contempt action. The Court advised Respondent that he can also hire his own attorney. See 5/14/26 Minute Order. Respondent did not file an Income and Expense Declaration.

The parties are ordered to appear at hearing on 6/23/26 for Respondent's arraignment.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MONIKA MASTALEREK,

Petitioner

VS.

DANIEL LOBERT,

Respondent

) Case Number: FDI-23-798868

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: CHILD SUPPORT, PROPERTY CONTROL, PAYMENT OF RENT AND
HOUSEHOLD EXPENSES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Monika Mastalerek (Mother) and Respondent Daniel Lobert (Father).
They share one minor child: Matthew Lobert (DOB: 11/27/18).
- 2) On 12/4/25, the Court modified the prior 7/15/25 support order and ordered Father to pay Mother \$2,036 per month in temporary monthly spousal support and \$1,314 in guideline monthly child support. The Court also ordered Father to continue to share equally the monthly rent obligation so long as both parties continue to reside in the residence, issued orders regarding child support add-on expenses, and maintained its prior work search order for Mother. See Findings and Order After Hearing (FOAH) filed 12/24/25.
- 3) On 2/4/26, the Court issued a Restraining Order After Hearing (ROAH) that expires 2/4/29 wherein Mother is the protected party, and Father is the restrained party. Father was ordered to move out of the residence.

- 1 4) On 4/26/26, the Court ordered Father to have unsupervised parenting time with the minor child
2 every other week on Saturdays and Sundays from 10 am to 6 pm plus Thursday and Friday
3 evenings from pick-up afterschool to 8 pm on opposite weeks. See FOAH filed 5/5/26.
- 4 5) On 4/24/26, Mother filed an ex parte Request for Order seeking orders requiring Father to: (a)
5 pay his portion of the rent directly to the landlord (and/or not deduct it from Mother's support
6 payment unless the rent has been paid); (b) continue paying support as ordered; (c) continue
7 contributing to Mother's household expenses; and (d) register and use OurFamilyWizard (OFW)
8 for communications regarding the minor child. Mother asserts that Father stopped paying his
9 portion of her rent and reduced child support payments which created a financial hardship for her
10 and the minor child.
- 11 6) On 4/24/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.
12 Father states he paid rent before it was due every month and disputes Mother's allegations. Father
13 states that despite support being reduced pursuant to the 12/4/25 order, he continues to pay
14 \$4,426 in monthly support plus all household bills. Father asserts that he should not be court
15 ordered to communicate with Mother via OFW as his oncologist recommends that he maintain a
16 low-stress lifestyle. Father attached a letter from his oncologist.
- 17 7) On 4/24/26, the Court denied Mother's request for emergency relief pending hearing set on
18 6/23/26.
- 19 8) On 6/12/26, Mother filed a Supplemental Declaration asserting that Father resumed paying his
20 share of her rent after being served with the ex parte Request for Order. Mother states that the
21 financial issues were temporarily resolved, but the communication issue remains ongoing. Mother
22 reiterates her request to use OFW for communications regarding the minor child.
- 23 9) On 6/17/26, Father filed a Supplemental Declaration refuting Mother's position. Father reasserts
24 that the Court should deny Mother's request for OFW. Father states the restraining order includes
25 a provision for brief, peaceful communication about the court-ordered visits only.

26 **B. Findings and Order**

- 27 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
28 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
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1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child is the United States.

3 2) Moving forward, the parties shall communicate with each other using the Our Family Wizard
4 (OFW) application.

5 3) Both parties shall download the application by 6/26/26 at 5 pm.

6 4) Each party shall be responsible for their own fees associated with the use of OFW.

7 5) The parties shall communicate politely and respectfully, and only about the minor child. This
8 includes messages regarding the parenting time schedule, exchanges of the minor child,
9 appointments involving the health and welfare of the minor child, education and extracurricular
10 activities, and child support add-on expenses.

11 6) The parties are encouraged to check OFW messages regularly and respond promptly to messages
12 received; however, this platform shall only be used for brief and necessary co-parenting
13 communications.

14 7) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY T. LIU,

Petitioner

VS.

RENEE AYN A. LIU,

Respondent

) Case Number: FDI-24-799398

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, FAM. CODE 2030

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Anthony T. Liu (Father) and Respondent Renee Ayn A. Liu (Mother). They share one minor child: Keiandra (DOB: 5/2/17).
- 2) On 5/5/26, Mother filed a Request for Order seeking \$25,000 in Family Code section 2030 attorney's fees and costs. Mother asserts a disparity in income and access to funds stating she was laid off from her job in April 2025 and has since only been able to secure parttime work.
- 3) On 5/5/26, Mother's filed an attorney declaration substantiating her request for \$25,000 in Family Code section 2030 attorney's fees and costs.
- 4) On 5/5/26, Mother filed an Income and Expense Declaration.
- 5) On 6/9/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order. Father recognizes a disparity in income; however, disputes Mother does not have the funds to pay her own attorney's fees and costs. Father states he has voluntarily contributed \$25,000 to pay for the minor child's school tuition, extracurriculars, and other expenses while also maintaining the

1 mortgage and carrying costs on the family residence where Father resides. It is Father's position
2 that Mother is underemployed.

3 6) On 6/9/26, Father filed an Income and Expense Declaration.

4 7) On 6/12/26, Mother filed a Reply Declaration reiterating her request.

5 **B. Findings and Order**

6 1) Mother's request for Family Code section 2030 attorney's fees is GRANTED in the amount of
7 \$15,000.

8 2) The Court finds an award of attorney's fees and costs is appropriate here because there is a
9 demonstrated disparity between the parties in access to funds maintain counsel and in the ability
10 to pay for legal representation.

11 3) The Court further finds Father is reasonably likely to have the ability to pay for legal
12 representation for both parties and \$15,000 in fees and costs are reasonable and necessary.

13 4) Commencing 7/1/26, Father shall pay Mother \$5,000 a month on the 1st of every month until this
14 balance is paid in full.

15 5) The Court reserves jurisdiction over allocation and characterization of this fee award.

16 6) Counsel for Mother shall prepare the Findings and Order After Hearing.

17 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
18 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
19 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
20 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
21 proposed order after hearing directly to the court. Failure to submit the order after hearing within
22 10 days may allow the other party to prepare a proposed order and submit it to the court in
23 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMY KUBASAK ALTON,

Petitioner

VS.

DIRK ALTON,

Respondent

) Case Number: FDI-25-801544

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: BIFURCATION TO TERMINATE MARITAL STATUS; REQUEST FOR
ORDER: SPOUSAL OR PARTNER SUPPORT, DISSOLVING OF DAAK

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Amy Kubasak Alton (Wife) and Respondent Dirk Alton (Husband).
There are no minor children subject to this proceeding.
- 2) On 6/10/25, Wife filed a Petition for Dissolution indicating the date of marriage is 11/13/10 and
date of separation is 6/7/25 for a marriage of 14 years and 7 months.
- 3) On 8/1/25, Husband filed a Response and Request for Dissolution indicating the date of marriage
is 11/13/10 and date of separation is 6/7/25 for a marriage of 14 years and 7 months.
- 4) On 4/27/26, Wife filed a Request for Order seeking bifurcation of trial and termination of marital
status attached to which is form FL-315 (Request for Separate Trial) and a proposed Status Only
Judgment.
- 5) On 5/14/26, Wife filed a Request for Order and supportive declaration seeking guideline
temporary spousal support and leave of Court to dissolve the community business – a corporation
called "DAAK" – due to concerns regarding Husband's control and management, with

1 appointment of a forensic accountant and/or receiver. Wife attached a proposed XSpouse
2 calculation. Wife alleges Husband has mismanaged the community property business, mishandled
3 funds, and breached his fiduciary duty to Wife.

4 6) On 5/24/26, Wife filed an Income and Expense Declaration.

5 7) On 6/9/26, Husband filed a Responsive Declaration in agreement with Wife's request for
6 bifurcation of trial and termination of marital status so long as all applicable Family Code section
7 2337 conditions are imposed on Wife (since she is the moving party), with all remaining issues
8 expressly reserved.

9 8) On 6/9/26, Husband filed a Responsive Declaration and supportive declaration in opposition to
10 Wife's Request for Order seeking temporary spousal support and dissolution of DAAK. Husband
11 requests this issue be continued to allow Wife to submit to a vocational evaluation and the parties
12 to meet and confer regarding: (a) updated financial disclosures; (b) exchange of DAAK records
13 and account information; (c) selection of a neutral accountant, if necessary; and (d) dissolution of
14 DAAK after completion of existing World Cup-related work. Husband requests the Court use his
15 actual monthly income for support and impute income to Wife in the interim. Husband states a
16 receiver would do more harm than good. Husband alleges Wife liquidated community property
17 accounts.

18 9) On 6/9/26, Husband filed a supportive attorney declaration.

19 10) On 6/9/26, Husband filed a Memorandum of Points and Authorities.

20 11) On 6/9/26, Husband filed an Income and Expense Declaration.

21 12) On 6/17/26, Wife filed a Reply Declaration in support of her Request for Order seeking
22 temporary spousal support and dissolution of DAAK. Wife states she liquidated community
23 property funds in good faith because Husband is under investigation for tax fraud.

24 **B. Findings and Order**

25 1) **Bifurcation and Termination of Marital Status:** Public policy favors bifurcation and
26 termination of marital status.

27 2) The Court finds that Wife's request for bifurcation of trial and termination of marital status is
28 unopposed.
29

1 3) Based on the pleadings filed with the Court and signed under penalty of perjury, the Court further
2 finds that:

- 3 a. Wife filed a Petition for Dissolution on 6/10/25.
- 4 b. Under Family Code section 2339(a), the Court first acquired jurisdiction over Husband
5 when Husband was served with Wife's Petition and Summons on 6/26/25.
- 6 c. Husband filed a Response and Request for Dissolution on 8/1/25.
- 7 d. Within the Petition and Response, both parties indicate that they were residents of
8 California for at least six months and of San Francisco County for at least three months
9 immediately preceding the filing of the Petition.
- 10 e. Within the Petition and Response, both parties request a divorce based on irreconcilable
11 differences.
- 12 f. On 1/30/26, Wife filed a Declaration Regarding Service of Declaration of Disclosure
13 stating that Petitioner's/Wife's Preliminary Declaration of Disclosure was served on
14 Husband's attorney by email on 1/30/26.
- 15 g. In her Request for Separate Trial (attached to her 5/9/25 Request for Order), Wife
16 answered the prompt "All pension or retirement plans in which the community has an
17 interest are listed below" by listing the following accounts:
 - 18 i. Petitioner's LPL Financial x3655
 - 19 ii. Petitioner's LPL Financial x3479 Rollover IRA
 - 20 iii. Respondent's Capital Group/American Funds x3866 IRA
- 21 h. The Court therefore finds that there are no retirement plans that need to be joined in this
22 action under Family Code section 2337(d).

23 4) Based on the foregoing, Wife's unopposed request to bifurcate and terminate the parties' marital
24 status is GRANTED. Each party is restored to their previous single status as of 6/23/26. The
25 Court finds that this termination date meets the requirement set forth in Family Code section
26 2339(a).

27 5) As set forth in the attached Bifurcation of Status of Marriage (FL-347), the protections of Family
28 Code section 2337(c)(1)-(6) shall apply.
29

- 1 6) The parties are reminded that despite the termination of their marital status the Standard Family
2 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
3 Code section 233(a).
- 4 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved.
- 5 8) **Temporary Spousal Support and Other Orders:** The Court finds good cause to GRANT
6 Husband's request to **continue Wife's Request for Order filed 5/14/26 to 9/22/26 at 9 AM in**
7 **Dept. 403.** However, the Court also finds good cause to issue the following interim orders:
- 8 9) Wife's request for appointment of a receiver is DENIED without prejudice.
- 9 10) The parties shall meet and confer regarding appointment of a joint neutral forensic accountant to
10 review DAAK's finances, trace revenues and expenditures, and determine the extent of any
11 commingling or diversion of funds.
- 12 11) Wife's request for temporary spousal support is GRANTED, effective 5/14/26. In accordance
13 with the XSpouse report attached hereto and incorporated herein, Husband shall pay Wife \$5,150
14 in temporary spousal support by the 1st of every month. Payments shall commence 7/1/26.
- 15 12) The XSpouse inputs are based on the parties respective Income and Expense Declarations, which
16 they each signed under penalty of perjury.
- 17 13) As and for additional spousal support, Husband shall pay a Smith/Ostler percentage for any and
18 all income, compensation and/or remuneration available for support beyond the conservative
19 gross base monthly income of \$21,396 as set forth in the Smith/Ostler bonus table attached to the
20 XSpouse report. Additional spousal support shall be paid within 10 days of receipt. Husband
21 shall provide documentation showing the excess gross income and calculation upon which the
22 bonus is paid.
- 23 14) Husband owes Wife's \$7,974.21 in temporary base monthly spousal support arrears for the period
24 of 5/14/26 – 6/30/26 (\$2,824.21 for May + \$5,150 for June). Husband shall pay this balance in
25 full by 6/30/26. The parties shall meet and confer regarding whether Smith/Ostler bonus support
26 arrears are also owed for this time period.
- 27 15) The Court reserves jurisdiction over this temporary spousal support order retroactive to 5/14/26.
- 28
- 29

1 16) Husband's request that Wife submit to a vocational evaluation is GRANTED. The parties shall
2 meet and confer regarding selection of the vocational evaluator. Husband shall be responsible for
3 all fees and costs associated with the vocational evaluation.

4 17) Wife's counsel shall prepare the Findings and Order After Hearing and submit a judgment
5 terminating marital status and reserving the Court's jurisdiction over all other issues (with an FL-
6 347 that mirrors the terms of the FL-347 attached hereto).

7 18) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).

PETITIONER: AMY KUBASAK ALTON	CASE NUMBER:
RESPONDENT: DIRK ALTON	FDI - 25 - 801544

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 6/23/26

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.
- b. Name of plan:

	Type of order attached		
	3a(1)	3a(2)	3a(3)
Petitioner's LPL Financial x365	☐	☒	☐
Petitioner's LPL Financial x3479 Rollover IRA	☐	☒	☐
Respondent's Capital Group/American Funds x3866 IRA	☐	☒	☐

☐ See attachment 3b for additional plans.
- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

PETITIONER: AMY KUBASAK ALTON	CASE NUMBER: FDI - 25 - 801544
RESPONDENT: DIRK ALTON	

5. b. ☒ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☒ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☒ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

PETITIONER: AMY KUBASAK ALTON RESPONDENT: DIRK ALTON	CASE NUMBER: FDI - 25 - 801544
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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached: 0

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.

2026

	Husband	Wife
Fixed Shares	0	0
Number of children Percent time with NCP Filing status	0.00% MFJIN	0.00% MFJIN
Number of exemptions	1	2
Wages and salary	0	0
Self employed income	21396	2458
Other taxable income	950	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	1100	0
Other medical expenses	0	0
Property tax expenses	1000	0
Ded interest expense	1481	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures 2026

GUIDELINE

Nets (adjusted)

Husband	14995
Wife	1696
Total	16691
Addons	0
Guideln CS	0
S.Clara SS	5150
Total	5150

Support

Settings changed

Proposed Tactic 9

CS	0
SS	5150
Total	5150
Saving	0
Releases	0

Monthly Figures

Cash Flow

Guideline Proposed

Combined net spendable	16691	16691
Percent change	0%	0%

Husband

Payment cost/benefit	-5150	-5150
Net spendable income	9845	9845
Change from guideline	0	0
% of combined spendable	59%	59%
% of saving over guideline	0%	0%
Total taxes	6251	6251
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Wife

Payment cost/benefit	5150	5150
Net spendable income	6846	6846
Change from guideline	0	0
% of combined spendable	41%	41%
% of saving over guideline	0%	0%
Total taxes	762	762
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband

(0 = default steps)

Bonus amounts from: 0 to: 200000 Step: 500

Husband's Bonus	Additional Cost to Husband				Total CS	Total SS (adjusted)
	Child Support % of bonus	\$	Spousal Support % of bonus	\$		
0	0.00	0	0.00	0	0	0
500	0.00	0	19.91	100	0	5250
1000	0.00	0	19.91	199	0	5349
1500	0.00	0	19.91	299	0	5449
2000	0.00	0	19.91	398	0	5548
2500	0.00	0	19.91	498	0	5648
3000	0.00	0	19.91	597	0	5747
3500	0.00	0	19.91	697	0	5847
4000	0.00	0	19.91	796	0	5947
4500	0.00	0	19.91	896	0	6046
5000	0.00	0	19.91	995	0	6146
5500	0.00	0	19.91	1095	0	6245
6000	0.00	0	19.91	1194	0	6345
6500	0.00	0	19.91	1294	0	6444
7000	0.00	0	19.90	1393	0	6544
7500	0.00	0	19.90	1493	0	6643
8000	0.00	0	19.90	1592	0	6743
8500	0.00	0	19.90	1692	0	6842
9000	0.00	0	19.90	1791	0	6942
9500	0.00	0	19.90	1891	0	7041
10000	0.00	0	19.90	1990	0	7141
10500	0.00	0	19.90	2090	0	7240
11000	0.00	0	19.90	2189	0	7339
11500	0.00	0	19.90	2289	0	7439
12000	0.00	0	19.90	2388	0	7538
12500	0.00	0	19.90	2488	0	7638
13000	0.00	0	19.90	2587	0	7737
13500	0.00	0	19.90	2687	0	7837
14000	0.00	0	19.90	2786	0	7936
14500	0.00	0	19.90	2886	0	8036
15000	0.00	0	19.90	2985	0	8135
15500	0.00	0	19.90	3084	0	8235
16000	0.00	0	19.90	3184	0	8334
16500	0.00	0	19.90	3283	0	8434
17000	0.00	0	19.90	3383	0	8533
17500	0.00	0	19.90	3482	0	8632
18000	0.00	0	19.90	3582	0	8732
18500	0.00	0	19.90	3681	0	8831
19000	0.00	0	19.90	3780	0	8931
19500	0.00	0	19.90	3880	0	9030
20000	0.00	0	19.90	3979	0	9130

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

(0 = default steps)

Bonus amounts from: 0 to: 200000 Step: 500

Husband's Bonus	Additional Cost to Husband				Total CS	Total SS (adjusted)
	Child Support		Spousal Support			
	% of bonus	\$	% of bonus	\$		
20500	0.00	0	19.90	4079	0	9229
21000	0.00	0	19.90	4178	0	9328
21500	0.00	0	19.90	4278	0	9428
22000	0.00	0	19.90	4377	0	9527
22500	0.00	0	19.89	4476	0	9627
23000	0.00	0	19.89	4576	0	9726
23500	0.00	0	19.89	4675	0	9825
24000	0.00	0	19.89	4775	0	9925
24500	0.00	0	19.89	4874	0	10024
25000	0.00	0	19.89	4973	0	10124
25500	0.00	0	19.89	5073	0	10223
26000	0.00	0	19.89	5172	0	10322
26500	0.00	0	19.89	5271	0	10422
27000	0.00	0	19.89	5371	0	10521
27500	0.00	0	19.89	5470	0	10620
28000	0.00	0	19.89	5570	0	10720
28500	0.00	0	19.89	5669	0	10819
29000	0.00	0	19.89	5768	0	10919
29500	0.00	0	19.89	5868	0	11018
30000	0.00	0	19.89	5967	0	11117
30500	0.00	0	19.89	6066	0	11217
31000	0.00	0	19.89	6166	0	11316
31500	0.00	0	19.89	6265	0	11415
32000	0.00	0	19.89	6364	0	11515
32500	0.00	0	19.89	6464	0	11614
33000	0.00	0	19.89	6563	0	11713
33500	0.00	0	19.89	6662	0	11813
34000	0.00	0	19.89	6762	0	11912
34500	0.00	0	19.89	6861	0	12011
35000	0.00	0	19.89	6960	0	12111
35500	0.00	0	19.89	7060	0	12210
36000	0.00	0	19.89	7159	0	12309
36500	0.00	0	19.89	7258	0	12409
37000	0.00	0	19.89	7358	0	12508
37500	0.00	0	19.89	7457	0	12607
38000	0.00	0	19.89	7556	0	12707
38500	0.00	0	19.88	7656	0	12806
39000	0.00	0	19.88	7755	0	12905
39500	0.00	0	19.88	7854	0	13005
40000	0.00	0	19.88	7954	0	13104
40500	0.00	0	19.88	8053	0	13203

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

(0 = default steps)

Bonus amounts from: 0 to: 200000 Step: 500

Husband's Bonus	Additional Cost to Husband				Total CS	Total SS (adjusted)
	Child Support		Spousal Support			
	% of bonus	\$	% of bonus	\$		
41000	0.00	0	19.88	8152	0	13302
41500	0.00	0	19.88	8251	0	13402
42000	0.00	0	19.88	8351	0	13501
42500	0.00	0	19.88	8450	0	13600
43000	0.00	0	19.88	8549	0	13700
43500	0.00	0	19.88	8649	0	13799
44000	0.00	0	19.88	8748	0	13898
44500	0.00	0	19.88	8847	0	13997
45000	0.00	0	19.88	8946	0	14097
45500	0.00	0	19.88	9046	0	14196
46000	0.00	0	19.88	9145	0	14295
46500	0.00	0	19.88	9244	0	14394
47000	0.00	0	19.88	9343	0	14494
47500	0.00	0	19.88	9443	0	14593
48000	0.00	0	19.88	9542	0	14692
48500	0.00	0	19.88	9641	0	14791
49000	0.00	0	19.88	9740	0	14891
49500	0.00	0	19.88	9840	0	14990
50000	0.00	0	19.88	9939	0	15089
50500	0.00	0	19.88	10038	0	15188
51000	0.00	0	19.88	10137	0	15288
51500	0.00	0	19.88	10237	0	15387
52000	0.00	0	19.88	10336	0	15486
52500	0.00	0	19.88	10435	0	15585
53000	0.00	0	19.88	10534	0	15684
53500	0.00	0	19.88	10633	0	15784
54000	0.00	0	19.88	10733	0	15883
54500	0.00	0	19.87	10832	0	15982
55000	0.00	0	19.87	10931	0	16081
55500	0.00	0	19.87	11030	0	16180
56000	0.00	0	19.87	11129	0	16280
56500	0.00	0	19.87	11229	0	16379
57000	0.00	0	19.87	11328	0	16478
57500	0.00	0	19.87	11427	0	16577
58000	0.00	0	19.87	11526	0	16676
58500	0.00	0	19.87	11625	0	16776
59000	0.00	0	19.87	11725	0	16875
59500	0.00	0	19.87	11824	0	16974
60000	0.00	0	19.87	11923	0	17073
60500	0.00	0	19.87	12022	0	17172
61000	0.00	0	19.87	12121	0	17271

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

(0 = default steps)

Bonus amounts from: 0 to: 200000 Step: 500

Husband's Bonus	Additional Cost to Husband				Total CS	Total SS (adjusted)
	Child Support		Spousal Support			
	% of bonus	\$	% of bonus	\$		
61500	0.00	0	19.87	12220	0	17371
62000	0.00	0	19.87	12320	0	17470
62500	0.00	0	19.87	12419	0	17569
63000	0.00	0	19.87	12518	0	17668
63500	0.00	0	19.87	12617	0	17767
64000	0.00	0	19.87	12716	0	17866
64500	0.00	0	19.87	12815	0	17966
65000	0.00	0	19.87	12914	0	18065
65500	0.00	0	19.87	13014	0	18164
66000	0.00	0	19.87	13113	0	18263
66500	0.00	0	19.87	13212	0	18362
67000	0.00	0	19.87	13311	0	18461
67500	0.00	0	19.87	13410	0	18560
68000	0.00	0	19.87	13509	0	18660
68500	0.00	0	19.87	13608	0	18759
69000	0.00	0	19.87	13708	0	18858
69500	0.00	0	19.87	13807	0	18957
70000	0.00	0	19.87	13906	0	19056
70500	0.00	0	19.87	14005	0	19155
71000	0.00	0	19.86	14104	0	19254
71500	0.00	0	19.86	14203	0	19353
72000	0.00	0	19.86	14302	0	19452
72500	0.00	0	19.86	14401	0	19552
73000	0.00	0	19.86	14500	0	19651
73500	0.00	0	19.86	14599	0	19750
74000	0.00	0	19.86	14699	0	19849
74500	0.00	0	19.86	14798	0	19948
75000	0.00	0	19.86	14897	0	20047
75500	0.00	0	19.86	14996	0	20146
76000	0.00	0	19.86	15095	0	20245
76500	0.00	0	19.86	15194	0	20344
77000	0.00	0	19.86	15293	0	20443
77500	0.00	0	19.86	15392	0	20542
78000	0.00	0	19.86	15491	0	20641
78500	0.00	0	19.86	15590	0	20741
79000	0.00	0	19.86	15689	0	20840
79500	0.00	0	19.86	15788	0	20939
80000	0.00	0	19.86	15887	0	21038
80500	0.00	0	19.86	15987	0	21137
81000	0.00	0	19.86	16086	0	21236
81500	0.00	0	19.86	16185	0	21335

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA E. CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDI-25-801764

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHILD SUPPORT, ORDER SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alena Calder (Mother) and Respondent Ludwig Calder (Father). They share six minor children: Elias (7/1/10), Liora (10/7/11), David (10/25/14), Tanya (8/5/17), Charles (1/16/19), and Sarel (3/27/22).
- 2) On 9/2/25, the Court issued a temporary restraining order wherein Father is the protected party and Mother is the restrained party. The Court awarded Father sole legal and sole physical custody of the minor children.
- 3) On 12/3/25, the Court granted Mother supervised visitation with the minor children for 2 hours per week.
- 4) On 4/28/26, Father filed a Request for Order and supportive declaration seeking guideline child support based on Father's 100% timeshare and hardships including the special needs of the children; (b) imputation of income to Mother; (c) Watts/Epstein credits for debt incurred related to domestic violence allegations against Mother; (d) an order compelling Mother to submit an accurate Income and Expense Declaration (form FL-150); (e) an order compelling Mother to

1 comply with the 10/23/25 order to return identity documents; and (g) Family Code section 271
2 sanctions. Father appears to simultaneously seek guideline child support while alleging that above
3 guideline child support is appropriate in this case, in part, due to Elias' special medical needs.
4 Father states the amount he pays Mother's own father in rent is a financial hardship. Father
5 alleges that Mother has obstructed the process for Father to receive IHSS payments for his care of
6 Elias. Father alleges Mother's Income and Expense Declaration is inaccurate.

- 7 5) On 6/8/26, Mother filed a Responsive Declaration in opposition to Father's Request for Order.
8 Mother alleges Father misrepresents his own income and disputes Father's claims related to IHSS
9 payments. Mother alleges Father has not paid rent since 8/1/25.
10 6) On 6/8/26, Mother filed an Income and Expense Declaration.
11 7) On 6/16/26, Father filed a Reply Declaration reiterating his requests.
12 8) On 6/16/26, Father filed a Reply Memorandum of Points and Authorities.
13 9) The Court notes that related case no. FDV-25-801764 is set for trial in Dept. 403 on 7/28/26,
14 7/29/26, 7/30/26, and 8/4/26.

15 **B. Findings and Order**

- 16 1) Father's request for guideline child support is GRANTED.
17 2) Effective 4/28/26, and in accordance with the XSpouse report attached hereto and incorporated
18 herein, Mother shall pay Father \$1,435 in guideline monthly child support by the 1st of every
19 month. Payments shall commence on 7/1/26.
20 3) Mother owes Father \$2,870 in guideline child support arrears for the period of 4/28/26 – 6/30/26.
21 Mother shall pay Father an additional \$250 until this balance is paid in full.
22 4) The Court declines to impute income to Mother at this time.
23 5) The XSpouse inputs are based on the parties' respective Income and Expense Declarations, which
24 they each signed under penalty of perjury.
25 6) The Court reserves jurisdiction over this child support order retroactive to the filing date of the
26 petition (i.e., 8/1/25).
27 10) In so far as Father seeks restitution under the Domestic Violence Prevention Act (DVPA), such
28 relief is not ripe for adjudication as restitution under the DVPA is a statutory remedy only
29

1 available to victims of domestic violence; the parties are set for trial in related case no. FDV-25-
2 801764 on 7/28/26, 7/29/26, 7/30/26, and 8/4/26. (Family Code section 6342(a).)

3 11) In so far as Father seeks Watts/Epstein credits, such request is reserved for the time of trial.

4 12) On 10/23/25, the Court ordered Mother to return Father and the children's identity documents no
5 later than 5 PM on 10/24/25. Father made an unrefuted assertion that Mother did not comply with
6 this order.

7 13) As such, Mother is admonished for her failure to comply and Father's request for Family Code
8 section 271 sanctions is GRANTED in the amount of \$500. Mother shall pay Father this balance
9 in full by 6/30/26.

10 14) The Court will prepare the Findings and Order After Hearing with form FL-342 attached.
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2026

Fixed Shares

Number of children	6	0
Percent time with NCP Filing status	0.00%	0.00%
	MFJIN	MFJIN
Number of exemptions	8	1
Wages and salary	1050	0
Self employed income	600	2100
Other taxable income	0	0
TANF CS received	1100	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	0	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures 2026

GUIDELINE

Nets (adjusted)

Father	1905
Mother	2355
Total	4260
Addons	0
Guideln CS	1435
S.Clara SS	0
Total	1435

CS range: 1154-1435

Settings changed

Proposed

Tactic 9

CS	1435
SS	0
Total	1435
Saving	0
Releases	0

Monthly Figures Cash Flow

Guideline Proposed

Combined net spendable	4260	4260
Percent change	0%	0%
Father		
Payment cost/benefit	1435	1435
Net spendable income	3340	3340
Change from guideline	0	0
% of combined spendable	78%	78%
% of saving over guideline	0%	0%
Total taxes	-255	-255
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	956	956
Mother		
Payment cost/benefit	-1435	-1435
Net spendable income	920	920
Change from guideline	0	0
% of combined spendable	22%	22%
% of saving over guideline	0%	0%
Total taxes	-255	-255
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Mother pays Guideline CS, Proposed CS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	100 - 0	0	0	0 Father	1,435 Mother	1,435 Mother
0000-00-00	100 - 0	0	0	0 Father	68 Mother	68 Mother
0000-00-00	100 - 0	0	0	0 Father	109 Mother	109 Mother
0000-00-00	100 - 0	0	0	0 Father	164 Mother	164 Mother
0000-00-00	100 - 0	0	0	0 Father	219 Mother	219 Mother
0000-00-00	100 - 0	0	0	0 Father	328 Mother	328 Mother
0000-00-00	100 - 0	0	0	0 Father	547 Mother	547 Mother

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FLORENCE BIENVENU,

Petitioner

VS.

COLIN MATICHAK,

Respondent

) Case Number: FDV-24-817696

) Hearing Date: June 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

NOTICE OF HEARING (DOMESTIC VIOLENCE)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

I. Custody and Visitation

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Florence Bienvenu (Mother) and Respondent Colin Matichak (Father).
- 2) They share one minor child: Esme (DOB: 5/11/24).
- 3) The genesis of this hearing is a Request for Domestic Violence Restraining Order (DVRO) that was granted (see Restraining Order After Hearing filed 7/2/25), protecting Mother from Father for a period of two years and containing custody and visitation orders.
- 4) At the 9/9/25 hearing, the Court modified the parenting plan such that Father's visitation would occur on Saturdays and Sundays from 1:00 p.m. to 3:00 p.m. at the North Beach Playground in San Francisco. The visits were to be non-professionally supervised by a mutually agreed-upon

1 supervisor. The Court set a review hearing on 12/4/25 and ordered both parties to submit
2 proposed step-up plans no later than 10 days before the hearing.

3 5) On 12/4/25, both parties and their counsel appeared at hearing and the Court made a finding of
4 good cause to continue the matter to 1/22/26.

5 6) On 1/22/26, the parties appeared with counsel and the Court issued the following orders:

6 a. Set a review of custody, visitation, and remaining financial issues for 4/2/26.

7 b. Denied Petitioner's request for an independent medical examination.

8 c. Ordered Father to have unsupervised visitation with the minor child on Saturdays from
9 10:30 a.m. – 5:30 p.m. and Sundays from 1:00 p.m. – 3:00 p.m. starting the weekend of
10 1/24/26 – 1/26/26, with Father responsible for pick up and drop offs with exchanges to
11 occur at North Beach Police Station.

12 d. Permitted Mother to designate another party to perform the exchanges, and any
13 information regarding exchanges or the third party appointed for exchanges shall be
14 communicated via counsel.

15 7) On 3/6/26, Mother filed an ex parte request seeking emergency orders that "Father's visits shall
16 be professionally supervised pending evaluation of the child by the Child Trauma Research
17 Program."

18 8) On 3/6/26, Father filed a Responsive Declaration wherein he asked the Court to deny Mother's
19 emergency requests.

20 9) On 3/6/26, the Court; acting out of an abundance of caution, suspended Father's visitation
21 pending the evaluation.

22 10) On 3/20/26, the Court received and reviewed an "Investigation Narrative," which determined that
23 allegations of sexual abuse were inconclusive. The report is dated 3/2/26 and signed by
24 Protective Services Worker, Alia Hauwert and Protective Services Supervisor, Diana Martinez
25 Garcia. The determination that no "safety risks" between Father and the minor child were found
26 was important to Court.

27 11) At the prior 3/26/26 hearing, the Court confirmed that Mother continues to have sole legal and
28 sole physical custody and reinstated Father's unsupervised visitation. Based on the parties'
29

1 agreement, the Court continued the hearing set for 4/2/26 (review of custody, visitation, and
2 financial matters (see 1/22/26 order)) to 5/26/26.

3 12) On 4/16/26, Mother filed a Request for Domestic Violence Restraining Order, which was set to
4 be heard on 5/6/26.

5 13) On 5/6/26, the Court issued a 1st Amended Temporary Restraining Order wherein the Court –
6 based on the allegations against Father and out of an abundance of caution – ordered Father’s
7 visits be immediately (temporarily) suspended and denied Father’s request for supervised visits.

8 The Court issued the following additional relevant orders:

- 9 a. Matter is set for trial setting on 6/1/26 in Department 405 at 1:30 p.m.
10 b. The parties are already scheduled to appear in Court on 5/26/26 at 9:00 a.m. in
11 Department 403. This hearing shall be limited to financial matters only, including a
12 request for attorney fees by Mother. Both parties shall file and serve current Income and
13 Expense Declarations by 5/19/26.
14 c. Family Court Services is directed to conduct a Tier II investigation and prepare a report
15 regarding information gathered from CPS regarding this case.
16 d. The parties shall return for a review of custody and visitation issues and status of Tier II
17 report on 6/23/26 at 9:00 a.m. in Department 403.

18 14) On 5/14/26, the 5/26/26 hearing was continued to 6/9/26. The Court notes the issues set for
19 hearing on 5/26/26 were limited to Father’s 10/16/25 Request for Order and Mother’s oral request
20 for Family Code section 2030 attorney fees only.

21 15) On June 9, 2026, the parties agreed to continue all issues to the June 23, 2026 review hearing.

22 **B. Findings and Order**

- 23 1) **The parties are ordered to appear** as to the custody and visitation issues only.

24 II. Financial Matters

25 **A. Procedural History**

- 26 1) On 7/30/24, Mother filed a Petition for Dissolution in related case no. FDI-24-800082 indicating
27 that the date of marriage is 1/19/22 and date of separation is 5/21/24 for a marriage of 2 years and
28 4 months.
29

- 2) On 9/5/24, Father filed a Response and Request for Dissolution in related case no. FDI-24-800082 indicating that the date of marriage is 1/19/22 and date of separation is 8/6/24.
- 3) On 10/1/24, the Court made child support (\$2,758) and temporary spousal support (\$3,408) orders with Smith/Ostler bonus support effective 7/5/24. The parties were ordered to meet and confer regarding arrears for the period of 7/5/24-9/30/24 considering any voluntary support Father paid. The Court also awarded Mother \$39,975 in Family Code section 2030 attorney's fees.
- 4) On 10/16/25, Father filed a Request for Order and Memorandum of Points and Authorities seeking: (a) termination of spousal support as Father paid support for half the length of a short-term marriage; (b) bifurcation and termination of marital status, with Mother responsible for obtaining and paying for her own health insurance and Father maintaining health insurance for the minor child; and (c) permission to remove Mother from Father's car insurance, which the Court understands is moot. Father asserts that since July of 2024 to date he paid Mother \$156,855 (\$93,518 in child and spousal support plus \$10,097.79 in bonus support plus \$38,242 in rent and utilities for May 2024- November 2024). Father asserts that there is no compelling reason for the Court to deny his request for bifurcation and termination of marital status and he is current on all support payments. Father states both parties have served their Preliminary Declarations of Disclosure. It is Father's position that he made a global settlement proposal on 8/31/25 and Mother did not provide any response. The matter was originally set for hearing on 12/30/25.
- 5) On 10/16/25, Father filed an Income and Expense Declaration.
- 6) At hearing on 12/4/25, the Court continued the 12/30/25 hearing date to 1/22/26.
- 7) On 1/8/26, Mother filed a Responsive Declaration and supportive pleading in opposition to Father's Request for Order in related case no. FDI-24-800082. Mother requests the Court: (a) order Father to continue to pay guideline temporary spousal support until the parties' assets and debts are divided; (b) deny Father's request for bifurcation and termination of marital status as it is barred by statute (Family Code section 2337) since Mother relies on Father's employer provided health insurance; and (c) issue \$2,500 in Family Code section 271 sanctions against Father for his failure to meet and confer prior to filing the instant request. Mother asserts that Father unnecessarily increased fees by filing this Request for Order because Mother will not be

1 able to afford living in San Francisco without spousal support, she depends on Father's employer
2 provided health insurance, and Father's retirement account has not yet been joined or divided.
3 Mother further asserts that Father has not complied with prior orders regarding support arrears
4 (\$23,345.40), bonus support (\$30,472.66), and reimbursement of health insurance copays
5 (\$10,642). It is Mother's position that Father made an incomplete global settlement proposal on
6 8/31/25 and she is awaiting his responses to informal discovery as she does not have the funds to
7 conduct formal discovery.

8 8) On 1/14/26, Father filed a Reply Declaration reiterating his position that as of December 2025 he
9 has paid Mother temporary spousal support for half the length of a short-term marriage. Father
10 states that he cannot afford to continue paying support obligations. Father asserts he has paid
11 Mother \$83,804.00 in support over the past year, \$50,573.00 in attorney fees, and she will also
12 receive an additional \$35,000 in attorney's fees from the parties' jointly filed tax return. Father
13 believes Mother can become self-supporting and termination of marital status is not barred by
14 statute.

15 9) At the prior 1/22/26 hearing, the Court granted Mother's s request that the Court order Father to
16 reimburse Mother \$10,642 in health insurance copays and reserved jurisdiction over the
17 remaining financial issues for hearing on 4/2/26.

18 10) At the prior 3/26/26 hearing on custody and visitation, the parties agreed to continue the 4/2/26
19 hearing to 5/26/26.

20 11) At the prior 5/6/26 hearing, Mother made an oral request for Family Code section 2030 attorney's
21 fees and costs.

22 12) On 5/14/26, the 5/26/26 hearing was continued to 6/9/26 for adjudication of Father's 10/16/25
23 Request for Order and Mother's oral request for Family Code section 2030 attorney fees. See
24 Continuance Order filed 5/14/26.

25 13) On 5/18/26, Mother filed an update declaration stating that the parties reached an agreement on
26 4/13/26 that they would jointly file tax returns for 2025. Mother asserts the parties discussed
27 possibly filing joint tax returns for 2026 if Mother can remain covered under Father's employer-
28 provided health insurance until the end of 2026 (i.e., judgment of dissolution be entered after
29 12/31/26). Mother requests unpaid support (\$23,345.40 as ordered on 10/1/24) and bonus support

1 (\$30,472.66 as ordered on 10/1/24) arears be ordered paid within 30 days and reimbursement of
2 \$6,213 in health-insurance copays that were paid to Father by the insurer. Mother requests
3 \$50,000 in attorney's fees to prepare for and participate in the upcoming four-day domestic
4 violence trial.

5 14) On 5/18/26, Mother filed an updated Income and Expense Declaration.

6 15) On 5/19/26, Father filed an updated Income and Expense Declaration.

7 **B. Findings and Order**

8 1) **Bifurcation and Termination of Marital Status:** Public policy favors bifurcation and
9 termination of marital status. Since denial of such a request would conflict with public policy, the
10 opposing party must show compelling evidence that actual prejudice would result. See *Gionis v.*
11 *Sup.Ct.* (1988) 202 CCA3d 786, 788-90.

12 2) Based on the pleadings filed with the Court and signed under penalty of perjury, the Court finds
13 that Mother did not meet this burden. The Court further finds that:

- 14 a. Mother filed for a Petition for Dissolution on 7/30/24.
- 15 b. Father filed a Response and Request for Dissolution on 9/5/24.
- 16 c. Under Family Code section 2339(a), the Court first acquired jurisdiction over Father
17 when Father was served with Mother's Petition and Summons on 9/5/24.
- 18 d. Within the Petition and Response, both parties indicate that they were residents of
19 California for at least six months and of San Francisco County for at least three months
20 immediately preceding the filing of the Petition.
- 21 e. Within the Petition and Response, both parties request a divorce based on irreconcilable
22 differences.
- 23 f. On 11/14/24, Father filed a Declaration Regarding Service of Declaration
24 of Disclosure stating that his Preliminary Declaration of Disclosure was served on the
25 other party's attorney by email on 11/8/24.
- 26 g. In Father's Request for Separate Trial (attached to Father's Request for Order), he listed
27 the following retirement plans under the prompt "All pension or retirement plans in
28 which the community has an interest are listed below": Fidelity – Apple 401k Plan
29

1 xx7886 (in Respondent's name). The Court finds that this type of retirement account does
2 require joinder to this action under Family Code section 2337(d).

- 3 3) Based on the foregoing, Father's request to bifurcate and terminate the parties' marital status is
4 GRANTED. Each party is restored to their previous single status as of 6/9/26. The Court finds
5 that this termination date meets the requirement set forth in Family Code section 2339(a).
- 6 4) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
7 the protections of Family Code section 2337I(1)-(9) shall apply against Father until judgment is
8 entered and becomes final on all remaining issues. In Father's pleadings he states that he cannot
9 maintain Apple coverage if status is terminated. Based on a preponderance of the evidence
10 presented the Court finds that Father is financially able to comply with the requirement to provide
11 and maintain – at his own expense –comparable health insurance coverage for Mother. Father
12 conceded he will do so if ordered by the Court. If comparable coverable is not available, Father
13 shall be responsible for Mother's health and medical care to the extent the care would have been
14 covered absent dissolution. Father shall indemnify and hold Mother harmless from any adverse
15 consequences resulting from the loss of existing coverage.
- 16 5) The parties are reminded that despite the termination of their marital status, the Standard Family
17 Law Restraining Orders set forth in the Summons continue to apply to both parties per Family
18 Code section 233(a).
- 19 6) The Court's jurisdiction to adjudicate all remaining issues (including the issues outlined below) in
20 this dissolution matter is reserved under Family Code section 2337(f).
- 21 7) **Termination of Spousal Support:** Per *Marriage of Burlini* (1983) 143 Cal.App.3d 65,
22 "Temporary spousal support is utilized to maintain the living conditions and standards of the
23 parties in as close to the status quo position as possible pending trial and the division of their
24 assets and obligations."
- 25 8) Here, the Court adopted Father's proposed support calculation and issued a temporary monthly
26 spousal support order of \$3,408 on 10/1/24.
- 27 9) For spousal support termination requests, a court must consider all the Family Code
28 section 4320 factors; therefore, the Court applies the following Family Code
29 section 4320 analysis:

1 10) *The extent to which the earning capacity of each party is sufficient to maintain the standard of*
2 *living established during the marriage, taking into account all of the following: (i) The*
3 *marketable skills of the supported party; the job market for those skills; the time and expenses*
4 *required for the supported party to acquire the appropriate education or training to develop*
5 *those skills; and the possible need for retraining or education to acquire other, more marketable*
6 *skills or employment. (ii) The extent to which the supported party's present or future earning*
7 *capacity is impaired by periods of unemployment that were incurred during the marriage to*
8 *permit the supported party to devote time to domestic duties.*

- 9 a. Regarding the marital standard of living, Father reports that the parties maintained an
10 upper-class lifestyle during marriage that exceeded their financial means including living
11 in a luxury apartment and purchasing two luxury cars. Father states that the parties
12 carried credit card debt to cover basic living expenses, though he was able to set aside
13 some savings through equity compensation from his employment at Apple. Father states
14 that the parties have \$260,000 in loans associated with using in-vitro fertilization (IVF)
15 and surrogacy to start a family.
- 16 b. Mother agrees that the parties maintained an upper-class lifestyle during marriage and
17 adds that the parties frequently traveled for leisure and maintained an active social
18 lifestyle. Mother asserts that this lifestyle was supported by Father's income and the
19 parties were able to able to set aside retirement savings and investments.
- 20 c. It is undisputed that Father is employed by Apple and his income supported the parties
21 during marriage, while Mother has been unemployed since 2020 when the parties moved
22 from Canada to the United States (U.S.) for Father's job. Mother worked as a securities
23 attorney in Canada prior to moving to the U.S. Mother is not licensed as an attorney in
24 the U.S.
- 25 d. Father reports that Mother was never unemployed to devote time to domestic duties or to
26 support Father's career, rather her decision to remain unemployed was voluntary. Father
27 states that when Mother was employed, she earned \$12,500 per month and she is highly
28 educated (has a Juris Doctor/law degree) and speaks multiple languages. Father believes
29

1 Mother is reasonably employable in the current job market even without taking the
2 California Bar Exam.

- 3 a. Mother reports to secure gainful employment she would need to prepare for the
4 California Bar Exam or seek other training as she has been out of the workforce for five
5 years. Mother believes she is currently unable to earn an income to support herself as she
6 is the primary caregiver of the parties' daughter and suffers repercussions of domestic
7 violence.

8 1) *The extent to which the supported party contributed to the attainment of an education, training, a*
9 *career position, or a license by the supporting party.*

- 10 a. Mother left her job as a securities attorney in Canada to support Father's employment at
11 Apple by moving to the U.S. (San Francisco) where she is not licensed to practice law.

12 2) *The ability of the supporting party to pay spousal support, taking into account the supporting*
13 *party's earning capacity, earned and unearned income, assets, and standard of living.*

- 14 a. Father reports that he cannot afford to pay spousal support as the lifestyle the parties
15 maintained exceeded their means and he is responsible for significant community debt.
16 As of October 2025, Father reports carrying approximately \$63,000 in outstanding credit
17 card debt, \$91,000 in surrogacy loans, and \$361,440 in student loans.

- 18 b. Per Father's Income and Expense Declaration filed 10/16/25, Father earns an average
19 monthly income of \$17,320 and \$8,333 in employee stock grant vesting. Father lists
20 \$8,223 in cash assets, \$18,571 in easily saleable funds, -\$440,993 in personal property,
21 and \$16,024 in average monthly expenses.

- 22 c. Per Father's updated Income and Expense Declaration filed 5/19/26, Father earns an
23 average monthly income of \$17,993.26 and \$3,237.50 in monthly bonuses. Father lists
24 \$12,658.07 in cash assets, \$45,334.73 in easily saleable funds, -\$337,080.07 in personal
25 property, and \$17,932.24 in average monthly expenses.

26 3) *The needs of each party based on the standard of living established during the marriage.*

- 27 a. Father reports that he is unable to afford his average monthly expenses without
28 termination of the spousal support order.

- 1 b. Mother asserts that she cannot afford to live in San Francisco and care for the child if
2 support is terminated. Mother states that she cannot afford the marital standard of living
3 even with the temporary spousal support order in place.
- 4 c. According to Mother, Father lives in a two-bedroom apartment in Palo Alto and
5 continues to travel frequently, while Mother and the minor child live in a studio
6 apartment in San Francisco.
- 7 d. According to Father, his income cannot sustain two separate households at the level of
8 spending that existed during marriage.

9 4) *The obligations and assets, including the separate property, of each party.*

- 10 a. Mother reports that she has no separate property, carries credit card debt, and has taken
11 loans from family to pay for attorney's fees. Mother asserts that Father has exclusive
12 access to all community property assets.
- 13 b. Father reports his assts include Sofi Savings x6414; Chase Checking x0402; Chase
14 Checking x5635; Royal Bank of Canada x6106; Sofi Checking x8922; E*Trade from
15 Morgan Stanley x0761 - Cash Balance; Fidelity - Apple 401k Plan xx7886; Optum Bank
16 HSA x973; and credit card rewards points.
- 17 c. Father reports his debts include Student Loans Nelnet x5483; SoFi Bank Personal Loan
18 x8633; Chase x0924; Chase x7561; Apple x8154; Family loan -attorney's fees; Personal
19 loan - Cal & Wendy Matichak.

20 5) *The duration of the marriage.*

- 21 a. The parties appear to agree that the date of marriage is 1/19/22 and date of separation is
22 5/21/24 for a marriage of 2 years and 4 months (per each party's FL-157).

23 6) *The ability of the supported party to engage in gainful employment without unduly interfering*
24 *with the interests of dependent children in the custody of the party.*

- 25 a. The parties share one child, Esme, who is 2 years old (DOB: 5/11/24). Esme remains in
26 the care of Mother outside of Father's court ordered visitation, which is temporarily
27 suspended at this time.
- 28 b. According to Mother, Esme is not yet pre-school aged so Mother believes she is currently
29 unable to earn an income to support herself as she is the primary caretaker of Esme.

- 1 c. Mother asserts that the parties agreed that Mother would care for Esme full-time when
2 she was born.

3 7) *The age and health of the parties.*

- 4 a. Mother is 34 years old.
5 b. Father is 38 years old.
6 c. Both parties report that Mother has physical and mental health conditions. Mother asserts
7 that these conditions prevent her from seeking employment, which Father disputes.
8 d. Mother states that Father is diagnosed bipolar but has maintained full-time employment.
9 Father asserts that he experienced “a single, isolated mental health emergency
10 precipitated by relational stress with [Mother] and lack of sleep.” Father agrees that he
11 has maintained full-time employment.

12 8) *All documented evidence of any history of domestic violence, as defined in Section 6211, between*
13 *the parties or perpetrated by either party against either party’s child, including, but not limited*
14 *to, consideration of: (1) A plea of nolo contendere. (2) Emotional distress resulting from*
15 *domestic violence perpetrated against the supported party by the supporting party. (3) Any*
16 *history of violence against the supporting party by the supported party. (4) Issuance of a*
17 *protective order after a hearing pursuant to Section 6340. (5) A finding by a court during the*
18 *pendency of a divorce, separation, or child custody proceeding, or other proceeding under*
19 *Division 10 (commencing with Section 6200), that the spouse has committed domestic violence.*

- 20 a. On 7/2/25, the Court granted a two-year restraining order against Father under which
21 Mother is a protected party. See Restraining Order After Hearing filed 7/2/25.
22 b. The Court also reviewed and considered the Final Statement of Decision filed 7/28/25.
23 c. The parties are in active domestic violence litigation and the matter is currently being set
24 for a multi-day trial.

25 9) *The immediate and specific tax consequences to each party.*

- 26 a. The Court does not find that this factor has a significant impact on its analysis, though
27 Father reports that payment of spousal support significantly impacts his financial
28 situation since the obligation to pay spousal support eliminates his ability to contribute to
29

1 a tax deferred retirement account, thereby removing a potential tax deduction and
2 resulting in higher tax liability.

3 10) *The balance of the hardships to each party.*

- 4 a. Father asserts that continuing to pay spousal support would cause him a hardship as he is
5 unable to pay down community debts because of his spousal support obligation.
6 b. Mother asserts that termination of spousal support would cause her a hardship as she
7 would not be able to afford rent and other living expenses.

8 11) *The goal that the supported party shall be self-supporting within a reasonable period of time.*

9 *Except in the case of a marriage of long duration as described in Section 4336, a “reasonable*
10 *period of time” for purposes of this section generally shall be one-half the length of the marriage.*
11 *However, nothing in this section is intended to limit the court’s discretion to order support for a*
12 *greater or lesser length of time, based on any of the other factors listed in this section, Section*
13 *4336, and the circumstances of the parties.*

- 14 a. This is a short-term marriage of 2 years and 4 months, and Father has already paid
15 spousal support for half the length of marriage. No evidence was presented that Mother
16 has made any effort to become self-supporting. However, based on a totality of the
17 circumstances, the Court finds it is reasonable for Mother to continue to rely on spousal
18 support at this time.

19 12) *The criminal conviction of an abusive spouse shall be considered in making a reduction or*
20 *elimination of a spousal support award in accordance with Section 4324.5 or 4325.*

- 21 a. No evidence was presented that either party has been criminally convicted for domestic
22 violence.

23 13) *Any other factors the court determines are just and equitable.*

- 24 a. There are no additional factors beyond the ones described above.

25 14) Based on the forgoing, Father’s request for termination of spousal support is DENIED without
26 prejudice.

27 15) Mother is hereby put on notice that failure to make reasonable good faith efforts to become self-
28 supporting may be one of the factors considered by the Court as a basis for terminating spousal
29 support in the future.

1 16) Father's request for permission to remove Mother from his car insurance is MOOT as the parties
2 agreed that Father can remove Mother from his car insurance plan.

3 17) Mother's request that the Court order Father to reimburse Mother \$6,213 in health insurance
4 copays is GRANTED as Mother provided documentary proof of the costs she incurred. See
5 Exhibit 2 of Mother's update declaration filed 5/18/26.

6 16) Mother's request for \$50,000 in Family Code section 2030 attorney's fees is DNEIED as there is
7 no statutory basis to make a request for attorney's fees to prepare for and participate in the
8 upcoming four-day domestic violence trial under Family Code section 2030.

9 18) The parties are ordered to meet and confer regarding unpaid support and bonus support arrears
10 Father may owe to Mother, and Father is encouraged to cure all unpaid support and bonus arrears
11 forthwith.

12 19) Mother's request for Family Code section 271 sanctions is DENIED. The Court cannot find that
13 Father's conduct frustrated the policy of law to encourage cooperation and settlement between the
14 parties.

15 20) Father's counsel shall prepare the written order after hearing and submit a Judgment terminating
16 marital status and reserving the Court's jurisdiction over all other issues (with an FL-347 that
17 mirrors the terms of the FL-347 attached hereto).

18 21) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).

PETITIONER: FLORENCE BIENVENU	CASE NUMBER:
RESPONDENT: COLIN MATICHAK	FDV - 24 - 817696

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☐ petitioner ☒ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 6/9/26

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

Fidelity - Apple 401k Plan xx7886 (in Respondent's name)

Type of order attached

3a(1) 3a(2) 3a(3)

☐	☒	☐
☐	☐	☐
☐	☐	☐

☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

PETITIONER: FLORENCE BIENVENU	CASE NUMBER: FDV - 24 - 817696
RESPONDENT: COLIN MATICHAK	

5. b. ☒ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☐ petitioner ☒ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☐ petitioner ☒ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☐ petitioner ☒ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

PETITIONER: FLORENCE BIENVENU RESPONDENT: COLIN MATICHAK	CASE NUMBER: FDV-24-817696
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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached: 0

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.